

October 3, 2019

Memorandum of Agreement
Between
The City of Peabody
and the
American Federation of State, County and Municipal Employees
AFL-CIO, Massachusetts State Council 93 Local #
July 1, 2018 through June 30, 2021

WHEREAS, the Collective Bargaining Agreement between City of Peabody (the "Employer") and the American Federation of State, County and Municipal Employees AFL-CIO, Massachusetts State Council 93 Local 364 (the "Association"), expires on June 30, 2018, and

WHEREAS, the Employer and the Association have negotiated a successor Agreement;

NOW, THEREFORE, the Employer and the Association agree that the New Agreement shall consist of the provisions of the Former Agreement, modified as follows:

1. WAGES:

The wages set forth in the contract shall be increased as follows:

Year 1 -	2%
Year 2 -	2%
Year 3 -	2%

2. DURATION:

The City proposes a three-year contract commencing at the end of the current contract. The City shall disburse all retroactive wages within 120 days of execution of this agreement.

3. WATER DISTRIBUTION:

Creation of incentives which would encourage employees in the Water Distribution Division to obtain appropriate licensing and continue his or her education. Additionally, amend wages to attached Schedule A.

4. ARTICLE XIX – EDUCATIONAL REIMBURSEMENT:

Change final sentence in paragraph 2 to read as follows: "...In addition, the City will compensate those employees who have maintained the full D3 and T3 State License in good standing for 12 full months with a \$1,000 annual stipend to be paid in the last payroll of each fiscal year."

Add the following sentence: "The City will compensate those employees who have maintained the full D4 and T4 State License in good standing for 12 full months with a \$1,500 annual stipend to be paid in the last payroll of each fiscal year."

Change the language in paragraph 3 to read: "The City will compensate those employees who have maintained the full D2 and T2 State license in good standing for 12 full months with a \$500 annual stipend to be paid in the last payroll of each fiscal year."

5. ARTICLE VIII

Add/clarify: "Professional Development hours may be applied during the last week after school closing for the summer."

6. Article VIII(1)(E):

Clarification of language/current practice: delete "Nurses Aides" from first sentence.

Change end of first sentence to read "commencing five (5) work days before school is open and concluding five (5) work days following the closing of schools for the summer."

Add/clarify: "School nurses shall follow the school calendar for days off and early release days for professional development days. Nurses shall work a full day on parent teacher conference days."

Add/clarify: "For each 7.5 hour work day, school nurses are paid for only 6.5 hours per day during the school year. The additional 1.0 hour per day work is deferred and shall be paid out over school break periods."

Add/clarify: "When a school nurse is on paid or unpaid leave for an entire school day, 7.5 hours of leave shall be deducted from leave allotment."

Add/clarify: "School nurses shall receive their personal leave during the first week of school to be used during that school year."

7. ARTICLE XXIII -Section 11 - DESE Certification

School nurses must obtain initial DESE Certification within twenty-four (24) months of hire. This period may be extended by Director of the Health Department.

8. ARTICLE XIX – Section 3 -Educational Reimbursement School Nurses –

Effective the first pay period in February 2020, Nurse Employees shall receive a stipend of \$250 per year for the training of teaching staff in the use of EPI Pens. Such training shall take place no more than twice a year.

Effective the first pay period in February 2021, Nurse Employees shall receive a stipend of \$350 per year for the training of teaching staff in the use of EPI Pens. Such training shall take place no more than twice a year.

9. ARTICLE XVIII – UNIFORMS AND PROTECTIVE CLOTHING

Increase clothing allowance from \$150 to \$200 in Section 1, paragraph 1.
Increase clothing allowance from \$250 to \$300 in Section 1, paragraph 2.
Increase boot allowance from \$150 to \$200 in Section 3.
Increase tool reimbursement from \$400 to \$500.

Mechanics shall be specifically included in Section 1, paragraph 1.

10. ARTICLE XIX – Section 3 -Educational Reimbursement Tree/Forestry Division Employees – Professional Development

Effective the first pay period in February 2020, Tree department employees shall receive a stipend of \$200 per year for attending safety training, including courses in CPR and Electrical Hazards Awareness Program

11. ARTICLE IX 4 (B) – Clerk Premium Pay

32.5-hour clerk positions shall have premium pay increase from \$4.00 per hour to \$5.00 per hour when working between 32.5 and 40 hours in one work week.

12. Appendix A 32.5-hour CLERKS

Upgrade Police Department Clerks to Senior Account Clerks Grade 10 (from Grade 8)

13. ARTICLE XIX – Section 3 -Educational Reimbursement Clerical Employees – Professional Development

Effective the first pay period in February 2020, Clerical employees shall receive a stipend of \$250 per year for Professional Development, verification will not be required.

14. ARTICLE VIII – HOURS OF WORK – MEAL STIPEND

Meal stipend shall be increased from \$10 to \$12.50.

15. ARTICLE XV – FUNERAL LEAVE

Add new section:

Section 4: Funeral leave days are not required to be taken on consecutive working days.

16. ARTICLE IX 6 (A) – LONGEVITY

Increase Longevity by \$100 at each step.

17. ARTICLE IX 6 (F) – MAIL STIPEND

Increase mail stipend from \$10 to \$12.

18. ARTICLE XI - HOLIDAYS

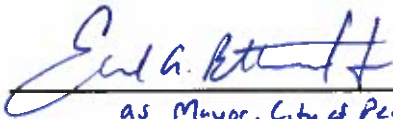
Employees required to work Christmas Day, New Year's Day or Thanksgiving Day shall receive double time for hours worked.

Holiday pay for continual coverage shifts shall be paid for work performed on the actual holiday rather than the observed holiday.

This Memorandum of Understanding is subject to ratification by the Employer and the Association. The Parties agree to use their best efforts to obtain ratification by their respective bodies.

City of Peabody

AFSCME Council 93 Local #364


as Mayor, City of Peabody















10-3-19

Date

10/3/19

Date